

IP04

Union Executive: President, Vice-President, PM and Council of Ministers

About 1-2 questions a paper from Indian Polity's block of roughly 11. Documented repeats: the presidential electoral college (2016, 2024), the 1971 census in the value of an MLA's vote (2016) and the impeachment procedure (2016, 2024). The election and the impeachment together carry more weight than everything else here.

This is the chapter of Articles 52 to 78 — the head of state, his deputy, and the men and women who actually run the country. RPSC does not ask you to discuss the President. It asks you which Article, which majority, which census year, which veto. Learn the numbers cold and this chapter becomes free marks.

Union Executive (Art. 52-78)

President - office

- Art. 52 - there shall be a President
- Art. 53 - executive power vested
- Art. 56 - 5-year term
- Art. 57 - re-election unlimited
- Art. 58 - qualifications, age 35

Powers

- Art. 111 - assent to Bills
- Veto: absolute, suspensive, pocket
- Art. 123 - ordinance
- Art. 72 - pardon
- Art. 143 - reference to SC

Election

- Art. 54 - electoral college
- Art. 55 - PR by single transferable vote
- 1971 census fixes vote value
- 50 proposers + 50 seconders
- Art. 71 - disputes to Supreme Court

Vice-President

- Art. 63, 64 - ex-officio RS Chairman
- Art. 66 - both Houses only
- Art. 66(3) - RS qualification
- Art. 67(b) - removal by RS
- Art. 65 - acts as President

Removal

- Art. 61 - impeachment
- Ground: violation of the Constitution
- 1/4 signatures, 14 days notice
- 2/3 of total membership
- Never used in India

Council of Ministers

- Art. 74 - aid and advise
- Art. 75 - appointment, responsibility
- Art. 75(1A) - 15% cap, 91st Amdt
- Art. 77, 78 - business, PM's duty
- Art. 76 - Attorney General

What the office of President actually is

Start with the split that runs through the whole chapter. The President is the nominal executive. The Council of Ministers headed by the Prime Minister is the real executive. The Constitution says the executive power of the Union is vested in the President, but almost every power is exercised on ministerial advice. Keep the two apart in your head and half the confusing statements in a question set resolve themselves.

- Article 52 - there shall be a President of India. That is the whole Article.
- Article 53 - the executive power of the Union is vested in the President.
- He exercises it directly, or through officers subordinate to him.
- He is head of state, not head of government. The PM is head of government.
- The President is part of Parliament (Article 79), though he sits in neither House.
- Do not swap 52 and 53 - if the question says 'vested', the answer is Article 53.

The election - understand it before you memorise it

The President is not elected directly by the people, but he is not elected by Parliament alone either. The idea is federal. Both the Union and the States must have a voice, and every State's voice must be proportionate to its population. That single idea produces every rule that follows. Read the next four blocks in that light and the arithmetic stops looking arbitrary.

Who is in the electoral college - Article 54

- Elected members of both Houses of Parliament - Lok Sabha and Rajya Sabha.
- Elected members of the Legislative Assemblies of the States.
- Elected members of the Assemblies of Delhi and Puducherry, added by the 70th Amendment Act, 1992.
- Nominated MPs are excluded. Nominated MLAs are excluded.
- All members of Legislative Councils are excluded - MLCs never vote for the President.

Now the method. Article 55 says the election is by proportional representation through a single transferable vote, by secret ballot. Article 55 also says uniformity of representation among the States must be secured, and parity between the States as a whole and the Union. That is why the vote of an MLA from a large State counts for more than the vote of an MLA from a small one.

- Value of a vote - learn both formulae. Value of one MLA's vote = $\frac{\text{population of the State as per the 1971 census}}{\text{number of elected MLAs}} \div 1000$.
- Value of one MP's vote = $\frac{\text{total value of the votes of all MLAs of all States}}{\text{total number of elected MPs}}$.
- The census year is frozen at 1971. It is not the latest census.
- A candidate must secure the quota - more than half the total value of valid votes polled.

ASKED IN RAS

Asked in RAS Pre 2016 - the value of the vote of a member of a State Legislative Assembly in the presidential election is determined with reference to which census? Answer: the Census of 1971. This one fact has been asked on its own; do not lose it.

ASKED IN RAS

Asked in RAS Pre 2016 and again in 2024 as a statement set on the electoral college. The tested points were the same both times - elected members of both Houses and of the State Assemblies vote; nominated members and MLCs do not.

- Nomination of a presidential candidate needs 50 proposers and 50 seconders.
- Security deposit for the presidential candidate is Rs 15,000.
- For the Vice-President it is 20 proposers, 20 seconders and the same Rs 15,000.
- Bigger office, bigger number - 50/50 for President, 20/20 for Vice-President; the deposit is identical, and that sameness is how a wrong option is built.

Qualifications, oath, term and the filling of a vacancy

Four short Articles, and each one has been converted into a one-liner at some point. Learn them as a block, because a match-the-following on Articles 56 to 62 is the standard format.

Articles 56 to 62 at a glance

Article	Provision	The detail that gets asked
58	Qualifications	Citizen of India, 35 years completed, qualified for election to the Lok Sabha, no office of profit
60	Oath	Administered by the Chief Justice of India; in his absence, the senior-most available judge of the Supreme Court
56	Term of office	Five years; resignation is addressed to the Vice-President; continues until his successor enters office
57	Re-election	Eligible for re-election any number of times
61	Impeachment	Sole ground - violation of the Constitution

Article	Provision	The detail that gets asked
62	Filling a vacancy	Election within six months; the new President gets a fresh full five-year term

TRAP

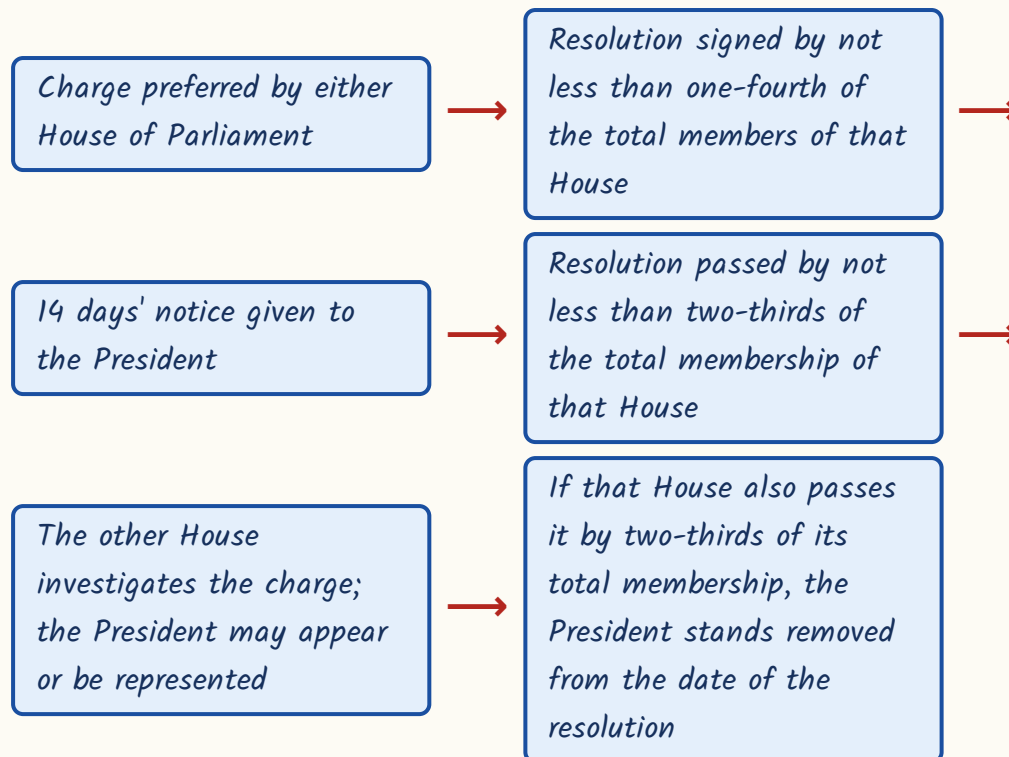
Two resignations, opposite directions. The President resigns to the Vice-President. The Vice-President resigns to the President. RPSC swaps these in a NOT-correct question almost every time it touches the office.

- Article 71 - all doubts and disputes about the election of the President or the Vice-President are decided by the Supreme Court, and its decision is final.
- The election is not invalidated merely because there was a vacancy in the electoral college.
- The President's qualification is tied to the Lok Sabha; the Vice-President's to the Rajya Sabha. Both need 35 years.

Impeachment - the one process you must be able to draw

Impeachment under Article 61 is a quasi-judicial process. It has one ground and one ground only - violation of the Constitution. Not misbehaviour, not incapacity, not corruption. The Constitution does not even define what a violation is. Either House may start it, and the other House then investigates. Learn the sequence as steps, because RPSC asks it as a statement set and as a fill-in-the-majority.

Impeachment of the President - Article 61



ASKED IN RAS

Asked in RAS Pre 2024 - the only ground on which the President of India can be removed by impeachment. Answer: violation of the Constitution. Asked again in 2016 and 2024 as a statement set on who may prefer the charge and what majority is needed.

TRAP

This is the highest-value trap in the chapter. In the presidential ELECTION, elected MLAs vote and nominated MPs do not. In IMPEACHMENT it is exactly the reverse - nominated members of Parliament participate, and elected members of the State Assemblies do not. Impeachment is a purely parliamentary act.

- No President of India has ever been impeached.
- Two-thirds here is of the TOTAL MEMBERSHIP of the House, not of members present and voting.

- One-fourth is only for the signatures on the resolution, not for its passage.

Legislative powers - the veto and the ordinance

When a Bill passed by both Houses reaches the President under Article III, he has three choices - assent, withhold assent, or return the Bill for reconsideration if it is not a Money Bill. Those three choices are what we call the veto powers. India has three vetoes. The United States has a fourth one, the qualified veto, and RPSC likes to slip it into the option set.

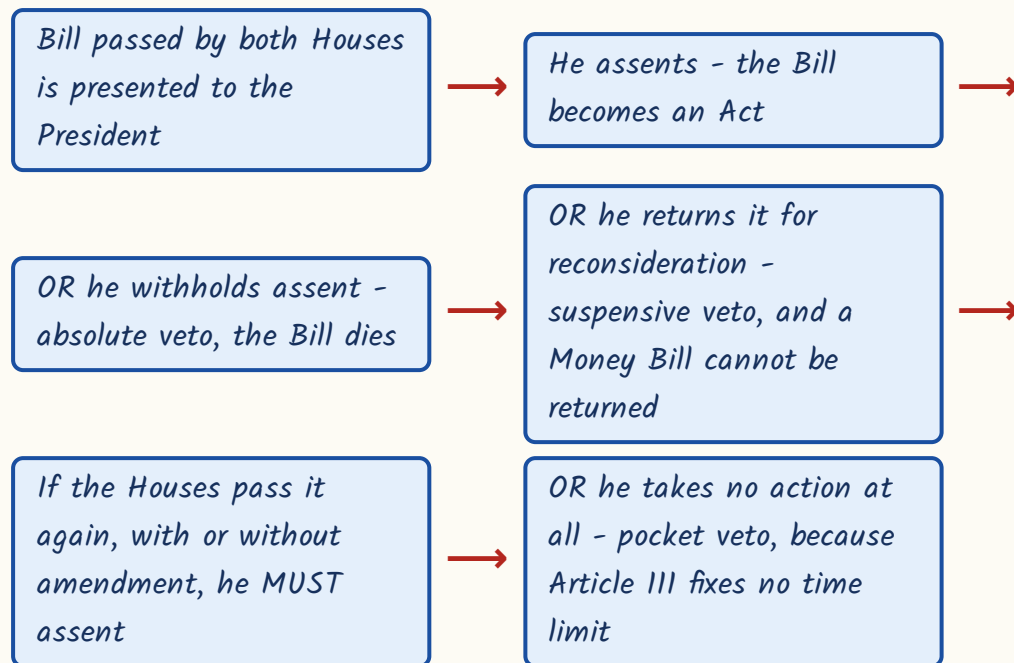
Veto powers of the President

Type	What he does	When it applies
Absolute veto	Withholds assent outright; the Bill dies	Private member Bills; and over a State Bill reserved by the Governor under Article 201
Suspensive veto	Returns the Bill for reconsideration; if the Houses pass it again he must assent	Any ordinary Bill; NOT a Money Bill
Pocket veto	Neither assents nor returns - simply sits on it	Article III sets no time limit for him to act
Qualified veto	Does not exist in India	This is the American President's veto, overridable by a higher majority

- The pocket veto was famously used by President Giani Zail Singh on the Indian Post Office (Amendment) Bill, 1986.
- Over a State Bill reserved for his consideration under Article 201 the President enjoys an absolute veto.
- He cannot return a Money Bill for reconsideration - he assents or withholds.

YAAD RAKHO

Three vetoes in India - A, S, P: Absolute, Suspensive, Pocket. There is no Q. If 'qualified veto' appears in the options for an India question, that is the answer to a NOT-question and the wrong answer to a straight one.

What happens when a Bill reaches the President - Article III

Now the ordinance-making power, Article 123. An ordinance is emergency law-making. It is available only when at least one House is not in session and the President is satisfied that circumstances require immediate action. An ordinance has the same force as an Act of Parliament, but it lives on a clock.

- The ordinance power is co-extensive with Parliament's legislative power - he can ordinance only on what Parliament can legislate.
- It must be laid before both Houses when they reassemble.
- It ceases to operate six weeks after the reassembly of Parliament.
- An ordinance cannot amend the Constitution.
- *D. C. Wadhwa v. State of Bihar (1987)* - repeated re-promulgation of ordinances is a fraud on the Constitution.
- Reaffirmed in *Krishna Kumar Singh v. State of Bihar (2017)*.

- Six weeks runs from the REASSEMBLY of Parliament, not from the date of promulgation.

Pardoning power – Article 72 against Article 161

Article 72 gives the President mercy jurisdiction; Article 161 gives the Governor a narrower version of the same. The examiner's whole interest is in where the Governor stops. Two things only the President can do. Learn those two and the comparison is done.

President (Art. 72) vs Governor (Art. 161)

President – Article 72	Governor – Article 161
Can pardon, commute, remit, respite and reprieve	Same five forms available
CAN pardon a death sentence	CANNOT pardon a death sentence
CAN act on a sentence by a court martial	CANNOT touch a court martial sentence
Extends to punishment for an offence against a Union law	Extends to offences against a law relating to a matter in the State's executive power
Exercised on the advice of the Council of Ministers	Exercised on the advice of the State Council of Ministers

The five forms of mercy – learn the definitions, they are matched

Term	What it means
Pardon	Absolves the convict of the sentence, the conviction and all disqualifications
Commutation	Substituting one form of punishment with a lighter form
Remission	Reducing the period of a sentence without changing its character
Respite	A lesser sentence on account of some special fact, such as physical disability of the convict
Reprieve	A temporary stay of the execution of a sentence

YAAD RAKHO

Commutation changes the **KIND** of punishment. Remission changes the **QUANTITY**. Reprieve only presses pause. Pardon wipes the slate clean. These four are the ones that get matched wrongly.

The Vice-President - a different electoral college

The Vice-President's election looks like the President's but is deliberately narrower. No State legislature takes part at all, and nominated MPs do take part. Understand why - the Vice-President's real job is to chair the Rajya Sabha, which is a parliamentary job, not a federal one.

- Article 63 - there shall be a Vice-President of India.
- Article 64 - he is ex-officio Chairman of the Council of States and draws the salary payable to the Chairman.
- Article 66 - elected by an electoral college of the members of BOTH Houses of Parliament, INCLUDING the nominated members.
- The method is the same - proportional representation with a single transferable vote.
- Article 66(3) - qualifications: citizen of India, 35 years of age, qualified for election as a member of the Rajya Sabha.

Electoral college - President vs Vice-President

President	Vice-President
Elected MPs of both Houses	ALL members of both Houses
Elected MLAs of States, Delhi and Puducherry	No State legislature participates at all
Nominated members excluded	Nominated members included
Qualified for election to the Lok Sabha	Qualified for election to the Rajya Sabha

Removal, and acting as President

- Article 67(b) - removed by a resolution passed by a majority of all the then members of the Rajya Sabha (effective majority) and agreed to by the Lok Sabha.
- 14 days' notice is required. The Constitution states no ground for his removal.
- The resolution can originate only in the Rajya Sabha, never in the Lok Sabha.
- Article 65 - the Vice-President acts as President during a vacancy in that office.
- While acting as President he does NOT perform the duties of Chairman of the Rajya Sabha and does not draw the Chairman's salary - he draws the President's emoluments.
- He can act as President for a maximum of six months, because Article 62 requires the vacancy to be filled within six months.
- If both offices fall vacant, the Presidential (Discharge of Functions) Act, 1969 puts the Chief Justice of India first.
- Justice M. Hidayatullah discharged the functions of the President in 1969 under that Act.

CURRENT LINK

Current link (as of September 2026): the office is a live illustration of Article 68. Shri Jagdeep Dhankhar resigned as Vice-President in July 2025, and Shri C. P. Radhakrishnan was elected and sworn in on 12 September 2025 as the 15th Vice-President of India. A mid-term vacancy in the Vice-President's office is filled by a fresh election and the new incumbent serves a full five-year term - unlike the presidential vacancy, which Article 62 puts on a six-month clock.

Prime Minister and the Council of Ministers

Article 74 is the hinge of the whole parliamentary system. There shall be a Council of Ministers with the Prime Minister at the head, to aid and advise the President. Two amendments turned that polite sentence into a command. The 42nd Amendment of 1976 made the advice binding. The 44th Amendment of 1978 softened it a little - the President may require the Council to reconsider, once, and after that he must act on the advice.

- Article 74(2) - the advice tendered by Ministers cannot be enquired into by any court.
- Article 75 - the Prime Minister is appointed by the President; the other Ministers are appointed on the Prime Minister's advice.
- Ministers hold office during the pleasure of the President.
- The Council of Ministers is collectively responsible to the House of the People alone - not to the Rajya Sabha.
- Article 75(5) - a Minister who is not a member of either House for six consecutive months ceases to be a Minister.
- Article 77 - conduct of the business of the Government of India.
- Article 78 - it is the Prime Minister's duty to communicate the decisions of the Council of Ministers to the President and to furnish information he calls for.

The 91st Amendment Act, 2003 - the size cap

Article	Body	Cap
75(1A)	Union Council of Ministers	Not more than 15% of the total strength of the Lok Sabha, including the Prime Minister
164(1A)	State Council of Ministers	Not more than 15% of the total strength of the Legislative Assembly, subject to a minimum of 12

- The minimum of 12 Ministers applies only to States, never to the Union.
- The same 91st Amendment also deleted the 'split' exemption from the anti-defection law - one amendment, two very different subjects.
- The Cabinet, the Cabinet Committees and the so-called Kitchen Cabinet are all extra-constitutional.
- The word 'Cabinet' entered the Constitution only through Article 352 as amended by the 44th Amendment - a National Emergency now needs the written recommendation of the Cabinet.
- Collective responsibility means the ministry stands or falls together; individual responsibility means a Minister holds office during the President's pleasure.

Attorney General - and the post that is not in the Constitution

The Attorney General is the government's chief law officer and the only law officer the Constitution names. Everything else in that office - Solicitor General, Additional Solicitors General - is a creature of executive order. That single distinction is the question.

- Article 76 - the Attorney General of India is appointed by the President.
- He must be qualified to be a judge of the Supreme Court.
- He holds office during the pleasure of the President; no fixed tenure and no prescribed ground of removal.
- He has a right of audience in all courts in India.
- Article 88 - he may speak in either House of Parliament and in any committee, but has no right to vote.
- He is not a whole-time counsel of the government and is not barred from private practice.

- The Solicitor General and Additional Solicitors General are NOT constitutional posts.

TRAP

Article 76 is the Attorney General of India. Article 165 is the Advocate General of a State. One letter of difference in the name, ninety Articles of difference in the number. This pair is asked directly.

Presidents worth remembering – the personality facts RPSC uses

Name	Distinction
Dr. Rajendra Prasad	Only person elected President of India twice; served 1950–1962
Dr. S. Radhakrishnan	First Vice-President of India; President from 1962
Dr. Zakir Husain	First President of India to die in office, 1969
V. V. Giri	Elected President in 1969 on the basis of second-preference votes
Fakhruddin Ali Ahmed	Assumed office 1974; also died in office
Giani Zail Singh	Exercised the pocket veto on the Indian Post Office (Amendment) Bill, 1986

ASKED IN RAS

RPSC has set a chronological-ordering question on Presidents by year of assuming office – Radhakrishnan (1962), Zakir Husain (1967), V. V. Giri (1969), Fakhruddin Ali Ahmed (1974). Ordering questions are only about 3% of the paper, but this list is short enough to be worth ten seconds.

REVISION RECAP

1. Article 52 declares the office; Article 53 vests the executive power.
2. Electoral college: elected MPs + elected MLAs of States + elected MLAs of Delhi and Puducherry (70th Amendment, 1992). No nominated members, no MLCs.
3. Election is by proportional representation with a single transferable vote, secret ballot – Article 55.

4. MLA vote value uses the 1971 census; MP vote value = total MLA value divided by number of elected MPs.
5. Nomination: President 50 + 50; Vice-President 20 + 20; deposit Rs 15,000 for both.
6. Age 35 for both offices; President must be qualified for the Lok Sabha, Vice-President for the Rajya Sabha.
7. Oath by the Chief Justice of India, else the senior-most available Supreme Court judge - Article 60.
8. Impeachment: only ground is violation of the Constitution; one-fourth signatures, 14 days' notice, two-thirds of TOTAL membership in each House.
9. In impeachment nominated MPs vote and State MLAs do not - the exact reverse of the election.
10. Vacancy filled within six months; the new President gets a fresh five-year term - Article 62.
11. Disputes over either election go to the Supreme Court and its decision is final - Article 71.
12. Three vetoes only - absolute, suspensive, pocket. No qualified veto in India. Absolute veto over a State Bill reserved under Article 201.
13. Ordinance under Article 123 dies six weeks after Parliament reassembles and can never amend the Constitution.
14. Only the President can pardon a death sentence or a court martial sentence; the Governor under 161 can do neither.
15. Vice-President is elected by both Houses including nominated members, with no State legislature involved.
16. Vice-President is removed by an effective majority of the Rajya Sabha agreed to by the Lok Sabha; no ground is stated.
17. Article 74 advice was made binding by the 42nd Amendment; the 44th allowed one reconsideration.
18. Council of Ministers is collectively responsible to the Lok Sabha alone; a non-member ceases to be a Minister after six months.
19. 91st Amendment: 15% cap on Ministers - Union under 75(1A), States under 164(1A) with a floor of 12.
20. Attorney General under Article 76 is constitutional; Solicitor General is not. Article 165 is the State's Advocate General.